

OBSERVATIONS BY M. SCHÜCKING AND M. WANG.

[Translation.]

While fully concurring in the Court's conclusions, we nevertheless find it necessary to make some reservations regarding some of the reasons which are given in support of them. The Court has definitely adopted the view that there was a historic Danish sovereignty, extending over the whole of Greenland, and exercised, in particular, as early as the XVIIIth century. We are prepared to admit that there were indeed claims to that effect, which had been put forward by Denmark in earlier centuries, and had not been seriously disputed by other States. But the exact significance of the documents which should demonstrate the exercise of this sovereignty remains somewhat uncertain; moreover, the documents in question are legislative acts, the effective application of which, elsewhere than on the western coast—though it would have been an indispensable requirement under the international law even of that period—has not been sufficiently established. Even if all the circumstances, taken together, conferred a presumptive title upon Denmark, the history of the diplomatic overtures undertaken by Denmark between 1915 and 1921 in order to obtain recognition of her sovereignty over the whole of Greenland, proves, in our opinion, that, at that time, Denmark herself did not maintain towards the other interested Powers the theory of an already existing Danish sovereignty over the whole country. Regarding this point, having in view more especially the report of the Danish Minister for Foreign Affairs to the King of Denmark on August 1st, 1916, we are compelled to place a different construction upon the Danish overtures to the Powers, namely, that Denmark was desirous of *extending* her sovereignty to the whole of Greenland, with the assent of the States chiefly interested.

This view does not however prevent us from considering that, owing to some of the other reasons which are set forth in the judgment, the Norwegian occupation is unlawful and invalid.

(Signed) WALTHER SCHÜCKING.

(„) WANG CHUNG-HUI.